

24AHCV00148 24AHCV00148

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-06-29

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (SET TWO) FROM DEFENDANT TSE REALTY

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2C3%2C06%2F29%2F2026

Source SHA-256: c734dab46062a7f7d00c220d3a3b7d06a6100f878b45f0c9a9dfe92a216b0bfc

Case Number: 24AHCV00148 Hearing Date: June 29, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

ANTONIO
GUACHIA CARAC,

Plaintiff(s),

vs.

CONSOLIDATED
DISPOSAL SERVICE, LLC dba REPUBLIC WASTE SERVICES OF SOUTHERN CALIFORNIA,
LLC, et al.,

Defendant(s).

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 24AHCV00148

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS
FOR PRODUCTION OF DOCUMENTS (SET TWO) FROM DEFENDANT TSE REALTY

Dept.

3

8:30

a.m.

June 29,
2026

)

I.

INTRODUCTION

Plaintiff Antonio Guachiac Carac

("Plaintiff") moves for an order compelling defendant Tse Realty and Management Services ("Defendant") to provide further responses to Request for Production of Documents (Set Two), Nos. 45, 46, 51, 53, and 59. Plaintiff also requests the Court impose sanctions upon Defendant and counsel of record, jointly and severally, in the amount of \$3,260.

Defendant filed an opposition brief on June 15, 2026.

Plaintiff filed a reply brief on June 22, 2026.

II.

DISCUSSION

This action arises from an incident that occurred on January 11, 2023. Plaintiff alleges that he was in the course and scope of his employment with Defendant and was cleaning a drain at or near a driveway located at 622 South 6th Street, Alhambra, California 91801 ("Property"). A trash disposal truck collided into Plaintiff causing his right leg to become caught inside the drain cleaning equipment that he was operating; Plaintiff's right leg was ultimately amputated four days later on January 15, 2023.

Plaintiff alleges that Defendant hired Kenny Wan ("Wan") to perform plumbing/drain cleaning work requiring a C-36 license. Wan, in turn, hired Plaintiff to perform drain cleaning services even though Plaintiff was unlicensed to perform that work. Plaintiff argues that he and Wan are Defendant's statutory employees under Labor Code § 2750.5 because neither Wan nor Defendant maintained worker's compensation insurance.

RFP Nos. 45 and 59

Plaintiff demands Defendant produce documents to determine the "true scope, cost, and nature of the contract work [Wan] performed for Defendant." (Motion, p. 5.) Plaintiff also argues that the documents sought will establish the extent of Defendant's management to establish premises liability.

The documents requested include a list

of all 70 properties Defendant manages (RFP No. 45) as well as the contracts, certificates of insurance and 1099s associated with all vendors/contractors used across all 70 properties (RFP No. 59).

Plaintiff argues that the documents sought are relevant to or reasonably calculated to lead to the admissibility of evidence proving that he and Wan were Defendant's statutory employees. Plaintiff anticipates Defendant will assert that Wan was a handyman and rely on Business and Professions Code § 7048, also known as the "handyman" exception. The version of section 7048 applicable at the time of the incident dispenses with the Contractor's State License Law for "work or operations on a single undertaking or project by one or more contracts, the aggregate contract price which for labor, materials, and all other items, is less than five hundred dollars (\$500), that work or operation being considered of casual, minor, or inconsequential nature." (Bus. and Prof. Code, § 7048, subd. (a).) The statute further provides, "This exemption does not apply in any case wherein the work of construction is only a part of a larger or major operation, whether undertaken by the same or a different contractor, or in which a division of the operation is made in contracts of amounts less than five hundred dollars (\$500) for the purpose of evasion of this chapter or otherwise."

Defendant argues that Plaintiff's requests are overbroad because they are not limited to documents related to the building where Plaintiff was performing work when he was injured, the work orders directed to Wan, and the particular work being performed in the driveway or drain area at the building. Defendant frames the issue too narrowly, however, because evidence that Wan's work for Defendant was part of a larger or major operation will show that the "handyman exemption" is inapplicable. That larger or major operation could be evidenced by different contractors, and is therefore not limited to work Wan was hired to do at a specific property.

Plaintiff's motion is therefore GRANTED with respect to RFP Nos. 45 and 59.

RFP No. 46

RFP No. 46 seeks communications, records and data sent to tenants of the Property from 2018 to the present through software called AppFolio. Plaintiff argues these records are required to prove the scope and operational context of Defendant's management of the

PREMISES for premises liability purposes.

Defendant argues that RFP No. 46 encompasses countless routine communications concerning rent collection, maintenance requests, lease administration, tenant relations, inspections, notices, and other matters wholly unrelated to the claims asserted in this action. Defendant argues that even if the information exists inside a centralized software program, Plaintiff has not demonstrated good cause for such a broad category of documents. Rather, Defendant suggests that any relevant subset of documents would concern Wan's work and communications concerning the Property's driveway or drain area condition.

Since Defendant acknowledges that a relevant subset of documents is not objectionable, a Code-compliant response would include a statement of compliance or a representation of inability to comply with respect to that non-objectionable category. (Code Civ. Proc. § 2031.240, subd. (a).) The response must also identify with particularity the documents falling within the category of documents to which an objection is being made. (Code Civ. Proc., § 2031.240, subd., (b).)

Plaintiff's motion is therefore GRANTED with respect to RFP No. 46.

RFP No. 51

This RFP seeks emails and texts reflecting complaints made to Defendant tenants of the Property from 2018 to present. Plaintiff argues that the Property's narrow driveway was a dangerous condition and that tenant complaints are relevant to proving that Defendant had actual or constructive notice of the dangerous condition. Defendant argues that this category is overbroad, but by doing so, also acknowledges that some of the documents encompassed in this request are discoverable. Therefore, pursuant to Code of Civil Procedure section 2031.240, Defendant must provide a statement of compliance or a representation of inability to comply as to those discoverable documents and identify those particular documents to which an objection is being made.

Plaintiff's motion is therefore GRANTED with respect to RFP No. 51.

RFP No. 53

RFP No. 53

seeks text messages and communications exchanged between Timothy Tse and the property manager for the adjacent building. For context, the Property and the adjacent building share the driveway. Defendant agrees that communications about vehicle movement in the driveway are discoverable; thus, as stated above, a further response containing either a statement of compliance or a representation of inability to comply is required.

Plaintiff's motion is therefore GRANTED
with respect to RFP No. 53.

III.

CONCLUSION

The motion is GRANTED in its entirety
and further responses are required within 20 days of the date of this Order. The Court finds that Defendant did not act with substantial justification in opposing this motion and imposes sanctions on Defendant and counsel of record, jointly and severally, in the reduced amount of \$2,460 consisting of 6 hours at an hourly rate of \$400 plus a \$60 filing fee, payable within 20 days of the date of this Order.

Dated
this 29th
day of June 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this
tentative must send an email to the Court at indicating
intention to submit on the tentative as directed by the instructions provided
on the court website at www.lacourt.org. Please be advised that if you submit
on the tentative and elect not to appear at the hearing, the opposing party may
nevertheless appear at the hearing and argue the matter. Unless you receive a
submission from all other parties in the matter, you should assume that others

might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.